

or that he is withholding any responsive documents. Further, plaintiff has provided no authority that a party cannot engage in the assistance of others, including his attorney, to search for relevant records.

Sanctions. Given the Court's ruling, monetary sanctions will not be awarded.

The motion is **DENIED**. Plaintiff has submitted a proposed order that will be modified to reflect the Court's ruling.

IN RE: BOLLINGER

Case Number: 25CV-0206985

Tentative Ruling on Petition for Change of Name: Petitioner Stephanie Lynn Bollinger, AKA Stephanie Lynn Lowdermilk and Stephanie Lynn Zeccardi, seeks to change her name to Stephanie Lynn Bollinger. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Court notes Petitioner has indicated she is under the jurisdiction of the CDCR or in county jail. Based upon the criminal history check performed by the Court, this statement appears to be in error. However, further clarification is needed. Upon sufficient clarification regarding the statement, the Court intends to grant the Petition. **An appearance is necessary on today's calendar.**

CAPITAL ONE, N.A, VS. SANCHEZ

Case Number: 24CVG-00905

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Per CCP § 664.6: Capital One, N.A. seeks to vacate the dismissal entered on November 15, 2024, and enforce the Stipulation Agreement filed on November 14, 2024. Although the motion was timely noticed, Defendant Athena A. Sanchez did not file an opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed with the Court on November 14, 2024. This request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing, or orally before the Court. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The parties stipulated to settlement in November 2024. The agreement provides that Defendant agreed to pay Plaintiff \$151.00 by August 30, 2024, followed by a minimum of \$151.00 by the 26th day of each month, commencing in September 2024. In the event of a default, Defendant is to pay \$4,508.90, plus costs. Dismissal was entered on November 15, 2024. The Declaration of Alexander Balzer Carr establishes that the last payment was received on October 10, 2024. Defendant has paid \$302.00. The balance now due is \$4,206.90 plus costs in the sum of \$603.61 for a total requested judgment of \$4,810.51. A memorandum of costs has been filed. Plaintiff has presented sufficient evidence that Defendant is in default of the Stipulated Agreement.

The motion is **GRANTED**. The dismissal is set aside. Judgment will be entered in the amount of \$4,810.51. Plaintiff provided a proposed Order and Judgment that will be executed by the Court.

IN RE: CHAPMAN

Case Number: 25CV-0207106

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Tiffany Chapman seeks to change the name of her minor child, Zachary Rian Sharette Hunt, to Zachary Rian Chapman. All procedural requirements of CCP § 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.